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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**EVIDENTIARY OBJECTIONS
TO O'CONNELL DECL.**

Hearing: August 26, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110, 3.1113, and 3.1354 (as adapted to law-and-motion practice); and Code of Civil Procedure section 425.16, subdivision (c), as applicable to the fee motion opposed.
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court,

rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court’s authority to consider the substance is under Evidence Code sections 210, 350, 352, 702, 800, and 1200, and Code of Civil Procedure section 425.16(c).

5. This opposition is filed August 14, 2026, after the approximate CCP 1005(b) nine-court-day mark of August 13, 2026, together with the accompanying fee-opposition memorandum. Plaintiff asks the Court to consider these objections with the late opposition rather than enter an unopposed fee award.

Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

I. INTRODUCTION

Plaintiff objects to the following portions of the Declaration of Tyler J. O’Connell in Support of Defendant CSAA Insurance Exchange’s Motion for Attorneys’ Fees and Costs under Code of Civil Procedure section 425.16(c) (served July 17, 2026), and to the characterizations of Exhibits A, B, and C. Objections are stated for the hearing record under Evidence Code sections 210, 350, 352, 702, 800, and 1200, and to preserve error.

Paragraph numbers below track the served declaration as OCR’d from the July 17 package. If a later-filed amended fee declaration supersedes these paragraph numbers, Plaintiff will identify the corresponding paragraphs at hearing.

II. OBJECTIONS (BY PARAGRAPH / EXHIBIT)

For each item: **Material** (text objected to); **Grounds**; **Ruling** line for the Court.

OBJECTION 1. PARAGRAPH 3

Material: “Plaintiff’s allegations squarely target Defendant’s litigation conduct all from Plaintiff’s underlying personal injury jury trial, which Plaintiff lost by defense verdict in April 2025.”

Grounds: Improper opinion / legal conclusion (Evid. Code sections 800, 310): “squarely target” and the protected-activity characterization are ultimate legal issues under *Park / Baral*, not personal-knowledge facts for a fee declaration. Incomplete and argumentative as foundation for fees. Lack of foundation for restating merits holdings inside a lodestar declaration.

Ruling: Sustained / Overruled: -----

1 **OBJECTION 2. PARAGRAPH 4**

2 **Material:** Statements that counsel informed Plaintiff he must “withdraw the FAC, in its entirety”
3 because “the entirety of the purported legal theories in Plaintiff’s FAC focus inextricably on De-
4 fendant’s protected litigation conduct.”

5 **Grounds:** Improper legal conclusion; argumentative. Meet-and-confer narrative is not evidence
6 of the reasonableness of 165.60 hours or of entitlement to “entire case” fees.

7 **Ruling:** Sustained / Overruled: -----

8 **OBJECTION 3. PARAGRAPH 7**

9 **Material:** Description of a prior invoice “limited only to those matters directly related to” the anti-
10 SLAPP motion, creating a “reduced attorneys’ fees amount when compared to the full amounts
11 billed in legal fees on this case.”

12 **Grounds:** Plaintiff does not object to the Court considering the existence of a prior limited invoice
13 as an admission against interest on scope. Plaintiff objects to any use of paragraph 7 to imply
14 that the “full amounts billed ... on this case” are recoverable under section 425.16(c) as a legal
15 conclusion. Incomplete without producing the prior limited invoice side-by-side with Exhibit B.

16 **Ruling:** Sustained / Overruled: -----

17 **OBJECTION 4. PARAGRAPHS 8-9**

18 **Material:** “I am now submitting a revised legal fees invoicing, which no longer reduces the re-
19 coverable attorneys’ fees”; claim of 165.60 hours at \$210 per hour (with some staff time at a
20 lower rate) for “litigating this case against Plaintiff, in its entirety”; total “attorneys’ fees and costs
21 expended in litigating this case are: \$32,928.27.”

22 **Grounds:** Lack of foundation / speculative reconciliation: Exhibit B totals 169.30 hours and
23 \$34,961.50 in fees; Exhibit C totals \$1,137.46 in costs; neither equals the \$32,928.27 demand nor
24 165.60 x \$210. Improper opinion that “the entirety of the case is legally unsupportable, under
25 Code Civ. Proc. section 425.16,” as a substitute for lodestar proof. Incomplete compilation: no
26 worksheet reconciling rate mix, staff rates, and the noticed demand.

27 **Ruling:** Sustained / Overruled: -----

1 **OBJECTION 5. PARAGRAPH 9 (SCOPE CLAIM)**

2 **Material:** Moving “for all fees incurred by Defendant in being forced to litigate this meritless
3 lawsuit, including preparing and filing Defendant’s Anti-SLAPP motion and this Motion for At-
4 torneys’ fees, supporting Declarations, review and analysis of this motion, correspondences with
5 clients and Plaintiff, gathering and marking exhibits, and preparing for the hearing on this motion.”

6 **Grounds:** Improper legal conclusion that section 425.16(c) reaches all listed categories without
7 apportionment. Vague and overbroad (“correspondences with clients and Plaintiff”) lacking foun-
8 dation tying each hour to the special motion. Argumentative (“meritless lawsuit”).

9 **Ruling:** Sustained / Overruled: _____

10 **OBJECTION 6. PARAGRAPH 10 / EXHIBIT B**

11 **Material:** Exhibit B offered as “true and correct copy of my office’s invoicing for attorneys’ fees
12 incurred in this matter, redacted to preserve privilege, but listing all pertinent information, hours,
13 and fees and costs incurred.”

14 **Grounds:** Incomplete / misleading compilation (Evid. Code section 356 / completeness prin-
15 ciple): heavy redaction, OCR-illegible narrative fields, and a grand total (169.30 / \$34,961.50)
16 that conflicts with Decl. para. 9. Lack of foundation that every entry is for Case No. CGC-25-
17 631802 anti-SLAPP work where the invoice footer identifies “ROSARIO . . . V. ABDELHALIM.”
18 Evidence Code section 352: cumulative, confusing, and unfairly prejudicial if treated as a clean
19 lodestar without reconciliation. Plaintiff does not object to the Court reviewing specific identifi-
20 able entries for reduction analysis, but objects to treating the exhibit as proof that \$32,928.27 is
21 reasonable.

22 **Ruling:** Sustained / Overruled: _____

23 **OBJECTION 7. EXHIBIT B ENTRIES FOR NON-ANTI-SLAPP MO-**
24 **TIONS**

25 **Material:** Time entries describing, among other things, preparation of a motion to quash, demurrer
26 / CCP 436 papers, automatic-extension practice to push demurrer deadlines, and related strategy
27 “versus an anti-SLAPP motion.”

1 **Grounds:** Irrelevant to a section 425.16(c) lodestar to the extent offered to recover fees for other
2 motions (Evid. Code sections 210, 350). Lack of foundation for nexus to the special motion.
3 Misleading if left inside an undifferentiated “entire case” total.

4 **Ruling:** Sustained / Overruled: _____

5 **OBJECTION 8. PARAGRAPH 11 / EXHIBIT C**

6 **Material:** Exhibit C offered as “true and correct copy of my office’s invoicing for all costs incurred
7 in this matter,” totaling \$1,137.46.

8 **Grounds:** Incomplete / misleading: includes e-filing and mailing charges for demurrer, strike,
9 CMC, withdrawal, CourtCall ex parte, and other non-anti-SLAPP items. Duplicative of the July
10 21, 2026 MC-010 Line 1 claim for the same \$1,137.46. Lack of foundation that each cost is
11 recoverable under sections 1032 / 1033.5 as a cost of the special motion to strike.

12 **Ruling:** Sustained / Overruled: _____

13 **OBJECTION 9. FEE MPA PROOF-OF-SERVICE MISMATCH (RE-** 14 **LATED AUTHENTICATION)**

15 **Material:** The proof of service attached to the Fee MPA describes service of a memorandum
16 “IN SUPPORT OF DEFENDANT CSAA INSURANCE EXCHANGE, CARBONE, SMITH &
17 KOYAMA, AND MICHAEL R. CHAMBERS’ MOTION FOR ATTORNEY’S FEES” and refer-
18 ences Case No. CGC-25-631801 in the POS caption block.

19 **Grounds:** Lack of foundation / authenticity confusion for the 802 fee package as served. In-
20 complete and misleading authentication of what was noticed in this case. Plaintiff objects to any
21 reliance on a miscaptioned POS to prove notice completeness or multi-party fee entitlement in 802.

22 **Ruling:** Sustained / Overruled: _____

23 **OBJECTION 10. ARGUMENTATIVE FOOTNOTES AND “AI-DRAFTED** 24 **DELUGE” CHARACTERIZATIONS IN THE FEE MPA AS INCORPO-** 25 **RATED BY THE DECLARATION’S FEE NARRATIVE**

26 **Material:** Fee MPA characterizations (echoed in Decl. para. 9’s “entirety” fee claim) that Plaintiff
27 created a “veritable deluge of paper” using “artificial intelligence large language models,” offered

1 to justify 165.60 hours.

2 **Grounds:** Improper opinion; lack of foundation / expert methodology for authorship claims (Evid.
3 Code section 801); speculation; Evidence Code section 352. Volume adjectives are not lodestar
4 proof. The same volume adjectives appear in Defendant's vexatious-litigant declaration in this
5 case, and Plaintiff previously objected to those characterizations on the same grounds.

6 **Ruling:** Sustained / Overruled: _____

7 **III. REQUESTED RULINGS**

8 Plaintiff requests that the Court:

- 9 1. Sustain the objections above;
- 10 2. Decline to treat counsel's legal conclusions ("entirety of the case," "meritless," "squarely
11 target") as evidence of a reasonable lodestar;
- 12 3. Require a reconciled worksheet matching hours, rates, Exhibit B, Exhibit C, and the \$32,928.27
13 demand before any award;
- 14 4. Exclude or sever Exhibit B entries for non-anti-SLAPP motions and wrong-case / Abdelhalim-
15 captioned work from any section 425.16(c) award;
- 16 5. Exclude duplicative Exhibit C costs already claimed on the MC-010;
- 17 6. If any portion of Exhibits B or C is considered, limit consideration to specific identified entries
18 with a proved nexus to the special motion to strike in CGC-25-631802.

19 Dated: August 14, 2026

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